

STATE OF NEW YORK

896--A

2025-2026 Regular Sessions

IN SENATE

(Prefiled)

January 8, 2025

Introduced by Sen. MARTINEZ -- read twice and ordered printed, and when printed to be committed to the Committee on Veterans, Homeland Security and Military Affairs -- recommitted to the Committee on Veterans, Homeland Security and Military Affairs in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to the establishment of local comprehensive emergency management plans

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 5 and paragraph b of subdivision 7 of section
2 23 of the executive law, subdivision 5 as amended by chapter 385 of the
3 laws of 2017, paragraph b of subdivision 7 as amended by section 4 of
4 part B of chapter 56 of the laws of 2010, subparagraph 13 of paragraph b
5 of subdivision 7 as amended by chapter 724 of the laws of 2022, are
6 amended to read as follows:
7 5. In preparing such plans, cooperation, advice and assistance shall
8 be sought from local government officials, regional and local planning
9 agencies, police agencies, fire departments and fire companies, local
10 emergency management agencies, commercial and volunteer ambulance
11 services, health and social services officials, community action agen-
12 cies, the chief administrator of the courts, organizations for the
13 elderly and the handicapped, agencies and organizations that provide
14 home health care services, agencies and organizations that provide
15 hospice services, local and municipal animal shelters, any duly incorpo-
16 rated society for the prevention of cruelty to animals, veterinary
17 services, county animal response teams, other interested groups and the
18 general public. Such advice and assistance may be obtained through
19 public hearings held on public notice, or through other appropriate and
20 practical methods, through which such aforementioned groups may offer

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 their input for consideration on issues that support the effective prep-
2 aration and execution of the plan. In addition, in the case of home care
3 and hospice, such input may address procedures by which such providers
4 may be granted essential access to care for such patients during an
5 emergency.

6 b. Disaster response. Plans to coordinate the use of resources and
7 manpower for service during and after disasters and to deliver services
8 to aid citizens and reduce human suffering resulting from a disaster
9 shall include, but not be limited to:

10 (1) coordination of resources, manpower and services, using recognized
11 practices in incident management, utilizing existing organizations and
12 lines of authority and centralized direction of requests for assistance;

13 (2) the location, procurement, construction, processing, transporta-
14 tion, storing, maintenance, renovation, distribution, disposal or use of
15 materials, including those donated, and facilities and services which
16 may be required in time of disaster;

17 (3) a system for warning populations who are or may be endangered;

18 (4) arrangements for activating municipal and volunteer forces,
19 through normal chains of command so far as possible, and for continued
20 communication and reporting;

21 (5) a specific plan for rapid and efficient communication and for the
22 integration of local communication facilities during a disaster includ-
23 ing the assignment of responsibilities and the establishment of communi-
24 cation priorities and liaison with municipal, private, state and federal
25 communication facilities;

26 (6) (i) a plan for the coordination of evacuation procedures including
27 the establishment of temporary housing and other necessary facilities;
28 and

29 (ii) such plan shall include the identification of temporary housing
30 and other necessary facilities designated as animal-friendly;

31 (7) criteria for establishing priorities with respect to the restora-
32 tion of vital services and debris removal;

33 (8) plans for the continued effective operation of the civil and crim-
34 inal justice systems;

35 (9) provisions for training local government personnel and volunteers
36 in disaster response operations;

37 (10) providing information to the public which shall:

38 (i) consider the communication accommodation needs of persons with
39 vision or hearing impairments; and

40 (ii) include information on which temporary housing and other neces-
41 sary facilities are designated as animal-friendly;

42 (11) care for the injured and needy and identification and disposition
43 of the dead;

44 (12) utilization and coordination of programs to assist victims of
45 disasters, with particular attention to the needs of the poor, the
46 elderly, individuals with disabilities and other groups which may be
47 especially affected;

48 (13) control of ingress and egress to and from a disaster area,
49 including but not limited to, exempting from travel bans those essential
50 private and public personnel, as determined by the commission, who are
51 summoned by their employers to assist in emergency services, such as
52 utility and other workers who need to reach declared emergency areas in
53 order to perform tasks related to the restoration and/or maintenance of
54 energy and communications infrastructure;

55 (14) arrangements to administer state and federal disaster assistance;

1 (15) procedures under which the county, city, town, village or other
2 political subdivision and emergency organization personnel and resources
3 will be used in the event of a disaster;

4 (16) a system for obtaining and coordinating disaster information
5 including the centralized assessment of local disaster effects and
6 resultant needs;

7 (17) continued operation of governments of political subdivisions;

8 [~~and~~]

9 (18) utilization and coordination of programs to assist individuals
10 with household pets and service animals following a disaster, with
11 particular attention to means of evacuation, shelter and transportation
12 options[~~-~~]; and

13 (19) establishing partnerships with local and municipal animal shel-
14 ters, a society for the prevention of cruelty to animals and veterinary
15 services to assist in responding to emergencies involving animals.

16 § 2. This act shall take effect on the ninetieth day after it shall
17 have become a law.